

THE
KANSAS UNIVERSITY
QUARTERLY

CONTENTS

PENOLOGY IN KANSAS,
BIBLIOGRAPHY OF MUNICIPAL GOVERNMENT
IN THE UNITED STATES,

F. W. Blackmar

F. H. Hodder

PUBLISHED BY THE UNIVERSITY
LAWRENCE, KANSAS

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KANSAS UNIVERSITY QUARTERLY.

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PENOLOGY IN KANSAS.

BY F. W. BLACKMAR.

The Kansas State Penitentiary at Lansing has been noted as one of the best prisons in the far west. And indeed in some particular features it is quite remarkable. Among its especially good qualities, as compared with other prisons of similar nature, are its financial and economic management and its thorough discipline. Its financial management shows it to be practically a self-supporting institution. The institution has been fortunate in securing good management and in the utilization of the labor of the prisoners, by means of the contract system of labor, as well as in performing nearly all of the work in connection with repairs, improvements, etc. But especially has it been fortunate in its location immediately above a rich vein of coal, so that a shaft could be sunk within the prison walls for the working of the mine. ([See figure 4.](#))

The mine has thus been made to yield a handsome income for the benefit of the State. The running expenses of the penitentiary for the biennial period of 1891 and 1892 were \$297,409.47, while the receipts from contract labor, coal sales and other sources were \$215,190.35. Thus making an expenditure over and above cash receipts of \$81,939.94. But if it be considered, as it ought to be, that coal to the value of \$4,420.78 was furnished the western sufferers, and that coal to the value of \$42,533.68 was furnished to State institutions by the prison management, and also that \$50,106.46 were spent in permanent improvement,^[1] it will be seen that the income of the prison has exceeded its current expenses by a margin of over \$5,000 for the biennium of 1891 and '92. The total income from the coal mines for two years was \$168,993.57 and the total income from contract labor in the same period was \$78,225.80. This is a remarkable showing for a prison containing on an average about 900 prisoners of all grades and classes.

A close inspection of the prison management will convince one that a strictly military discipline prevails within the prison.^[2] It is a busy place at the penitentiary. All able-bodied men not undergoing special punishment are employed. It is not a place for idlers, for the law permits and requires service. The management of the different industries, the hospital, the library, the insane department, the kitchen and dining room all show care and system. So, also, for cell-ventilation and other forms of sanitation there is great care exercised by those in authority. While it is well to acknowledge the excellent management of the prison during the past, it is also pertinent to consider what progress may be made in the future. As there has been such great advancement in prison science in the past twenty years, it may be well to measure the Kansas penological system by ideal systems, as well as by the foremost practice in the best regulated prisons in Europe and America, to ascertain in what especial lines Kansas needs to develop her penological system.

No doubt it is highly gratifying to the tax-payers of Kansas that the institution is on a self-supporting basis. Especially is this to be approved in a new state where so much must be done in a short time; where schools, churches, hospitals, asylums, and penal institutions must be built and maintained by the people almost before they have made themselves comfortable in a new country. These must be provided for, while railroads, roads, bridges and court houses must be built and the native resources be made productive for the support of all.

But admitting all this, the management of prisons must consider reform as the ultimate service to be performed in all penal institutions. The new prison law of New York has admitted that reform is the ultimate end of all confinement. But it views reformation as the only radical means of protection to society. Reformation consists in “the reasonable probability that the prisoner will live and remain at liberty without violating the law.”^[3] In this the law rests on the political basis of protecting society rather than upon the moral basis of converting and improving the qualities of the individual for his own sake. Much progress has been made in the past fifty years in the treatment of prisoners respecting discipline and reform. Indeed, an entirely new light has been thrown upon the subject of penology. A careful inquiry has been made into the question of what men are confined for, how they are to be managed while under confinement, and what is to be

done with them after confinement. Although the fundamental principles of penology are quite well established concerning the object and nature of discipline, yet there are many questions of detail respecting the methods to be pursued in carrying out these principles of punitive and reformatory measures. In other words, the practical application of theory, in spite of all the progress that has been made, leaves serious difficulties to be met and mastered. It is generally considered by all right-thinking persons versed in prison science that the following objects of confinement are essential in every case: First, the protection of society; second, punishment of the offender; third, prevention of crime; and fourth, reform of criminals. Doubtless no theory of prison discipline may be considered complete which lacks any one of these four great fundamental principles. Yet it is true that we shall find, even at this day, one, two, and even three of these four fundamental principles violated in the practice of the imprisonment of our fellow beings. The practice of hurrying one, who does commit a crime, away from the sight and contact of his fellow beings, is indicative of a universal sentiment in modern society. Society demands at least this protection, and its request and privilege should never be denied in this respect. But the old idea of punishment for revenge has nearly died out of modern penalties of the law. There was a time when, coupled with the desire to shut one away from society, doubtless for its own protection, was a desire to take revenge upon the individual who had outraged society. Sometimes a desire for revenge precipitated an immediate punishment regardless of law and order. Sometimes it was studiously and systematically cruel in all its plans for punishment as well as in their execution. But in a large measure this has been eradicated from the spirit of our laws and institutions. We see some evidence of it in our modern process of lynching when anger and revenge seize upon people with such force as to cause them to lynch the lawbreaker in a most cruel manner. So also in respect to individuals who have committed great crimes, when the whole community seem so desirous of revenge that they have thrown their whole support into the prosecution of the offender. But these are exceptional cases. The spirit of punishment in modern times is that which looks calmly on the act of the lawbreaker as an injustice to society for which he must pay the penalty. In other words, a man is imprisoned for life or hung, not because society desires to wreak upon him vengeance on account of the crime which he has committed, but because society demands protection, and that he must be

punished on account of the demand to uphold the dignity and power of the law, for law without a penalty has little force to the evil doer.

Again, in regard to the prevention of crime. One of the chief objects of penal servitude is to set an example before other evil-disposed persons of what the consequences must be if they in turn violate the law. But in each of these cases it is to make the commitment of crime less frequent that men are imprisoned, rather than that they should suffer for their sins. But, finally, in the last case the reform of criminals within or without the prison walls has become one of the prime principles of penology. No present system or theory can be complete in these days that does not consider in some manner the methods of bringing back into legitimate society those who by their deeds have become outcasts from the body politic. In the study of sociology there are two sides of social life to be considered: First, there is what might be called legitimate society, which has sprung up from indefinite and simple beginnings, but has grown into a strong organism, which might be called the proper status of social life; and then there is the other side of humanity which may be termed the broken down, decrepit or fragmentary part of the great social body, which may be called disorganized society. It is as much the duty of the reformer to study the organized and legitimate society as it is to study the disorganized or the fragmentary. In modern times there have been a great many who call themselves social scientists, who devote a great deal of time to the criminal and the pauper, and properly so, for, indeed, it is from these broken down parts of humanity that we realize more especially the nature of human society, and discern more clearly the means of preventing crime; but the ideal or legitimate society must not be lost sight of. We must keep before our eyes the proper laws, proper government and proper protection of organized society while we investigate the habits, conditions and qualities of its outcasts. Hence in all modern reforms there are two subjects to consider: A reform measure which shall by direct application tend to develop and strengthen that which is already considered good and, on the other hand, a reform measure which shall reclaim and reform that which is considered bad. In this respect the state prison and the state university are not so far apart as it would seem: one tending to build up and strengthen legitimate society, to protect the state in all its interests, to make law more prominent, reform more stable, human society more moral and intellectual, crime less frequent and industry more prevalent by well ordered education. These are the objects of the state university. While,

on the other hand, in accordance with the last one of the penological principles stated, the prison has for its duty the same objects as the university, although applied to a class of individuals entirely different, who overstep the bounds of the law and by their own habits have abstracted themselves from legitimate society. Both institutions exist for the improvement of society and neither is instituted for the purpose of revenge.

While we have carried on the work of reform of prisoners to a considerable extent and while many seem to be carried away with it as the only great method of solving the evils of the day, we must not forget that the great institutions which tend to develop society on the basis of prevention of crime are not the only ones which are important to consider. And this arises from the very fact of reform, that if we allow either crime or pauperism to develop rapidly, unchecked, we shall soon find it such a burden on human society that the legitimate and well organized will become defective on account of the increase in the number of paupers and criminals who form a constant menace to civil institutions. While all sentiments for reform arise primarily from human sympathy with the weak and the erring, the state still rests the cause of its action in the full and complete protection of legitimate society. It matters not how individual sympathies act, the reformation of criminals finds its cause to be in the common weal of society. To make a prisoner more intellectual, to give him better moral qualities, to prepare him for better industrial independence, to send him out with a better life and means, if he wills, to support himself, to adopt means to help him from the prison world in which he has lived into a greater world outside: all this might arise out of benevolence, but it has for its ultimate end the simple protection and improvement of society as a whole. Consequently reform has become the sole great object in detaining criminals within prison walls. All other objects must be considered as means to this one great end.

In the discussion of penological principles one of the foremost methods of reform to be noticed is that of the classification of all criminals. Perhaps Belgium was the foremost state of Europe to adopt a thoroughly practical classification of prisoners. Formerly it was considered sufficient to have a large prison pen, a foul den into which old and young, light offenders and heavy villains were thrust, taking them out only occasionally for service or keeping them without service at all. Here the old criminals, hardened

through many years of repeated crimes, would rehearse their stories to the young who were soon educated in all of the tricks of the trade. Here in these horrid dens the propensities for crime were increased rather than diminished, and plots and plans were made for future depredations upon society.

Within a comparatively recent period most nations have endeavored to properly classify prisoners. First a general classification, separating the old from the young, the hardened criminals from the novices. The modern tendency is to institute reform schools and work houses for juveniles, reformatories for youth, and regular prisons for hardened criminals. But in the highest ideal of prison science each one of these is to be a reformatory of a different class. Kansas has determined upon this classification. The Reform School at Topeka, the Reformatory at Hutchinson and the State Penitentiary at Lansing represent this three-fold classification. The reformatory at Hutchinson has not been completed. Its methods are to be patterned after the reformatory at Elmira, N. Y., the model institution of its class in America. The chief difficulty in the establishment of such an institution in Kansas is its great expense. It is a great undertaking for a young state like Kansas to compete with an old wealthy state like New York. Yet the Kansas reformatory may take all the essential features of the Elmira reformatory and by obtaining rather more service from its inmates may be made less expensive. It will be trying to Kansas tax-payers to provide such an industrial school for the criminals of the state as that at Elmira, while it is only by dint of close saving that they are able to give as good an education to their own sons and daughters who have never offended against the state. Yet it must be remembered that this is done for the benefit of the whole state, for the purpose of lessening crime and expense. The reformatory at Hutchinson should be completed as soon as possible as there is a great need for it that the prisoners at Lansing may be properly classified and a certain group of those most susceptible of reform should be sent there.

Within the prison walls classification of individual prisoners according to crimes, temperament and habits has been of great assistance in their management. In the United States there are two main systems in vogue, that known as the Pennsylvania System and that as the New York System. The former may be defined as the solitary cellular system, and the latter as the

single cell system, with prisoners working and dining together. The Pennsylvania system had its origin in the celebrated Cherry Hill prison, built in 1821 to 1829, containing over 600 separate cells for continuous solitary confinement. This solitary confinement in large airy rooms is expensive but is considered as the best treatment of prisoners. Here the prisoner is kept at work, or instructed in trades or books. Work becomes a necessity to him. The only punishment is a dark cell with deprivation of work for a period.

The New York system is as has been practiced at Auburn, by which the prisoners are confined in solitary cells during the night, but have companionship during the day while at work, and at the dinner table. Each system has warm advocates. The solitary cell system has had most practice in Europe but the American plan has made up the lack of proper classification by the excessive work of prisoners.

Many persons hold that classification of prisoners in groups is a failure, and that the solitary cellular system is the only commendable method. Edward Livingston has thus set forth the advantages of this system:

“Every association of convicts that can be formed will, in a greater or less degree, corrupt, but will never reform those of which it is composed, and we are brought to the irresistible conclusion that classification once admitted to be useful, it is so in an inverse proportion to the numbers of which each class is composed. But it is not perfect until we come to the plan at which it loses its name and nature in the complete separation of individuals. We come then to the conclusion that each convict is to be separated from his fellows.”^[4]

The extent of isolation which each prisoner undergoes must be determined somewhat by the nature of his case and somewhat by the conditions and convenience of the prison. It is hardly possible for many modern prisons to have complete separation on account of the expense incurred, for this would mean that within the cell itself the prisoner must perform all labor, and that the cell shall be commodious enough to carry on this labor by himself, or else that he be given labor elsewhere alone. Such a system requires an increased amount of attendance.

At the Kansas penitentiary the system of solitary cell confinement at night and when off duty, and the silent associations of prisoners in groups

during the day while at work and at meals, is now in vogue. Without doubt this association during the day carries with it evil influences which are in a measure lessened by the requirements of the law for ten hours of labor for all able-bodied prisoners.

Whatever system of classification is adopted the reform idea must be faithfully considered. There should be an ample opportunity for study and for work, that both physical and intellectual powers may receive development. It has been proved by long continued observation that the typical criminal is weak in body and in mind. He may have intellectual cunning developed to a considerable degree, and may be capable of great physical efforts for spasmodic periods, but he is not a well developed being either physically or mentally.^[5] Hence his reform must frequently begin with physical discipline and this followed by mental training, or the two must be carried on together. In the Kansas penitentiary the law requires prisoners to work ten hours at labor. Consequently they have left, for study and general improvement, their evenings and Sundays. There is a school on Sunday for all who wish to attend. This is a very meagre showing for any systematic training with a view to permanent reform. It would seem that eight hours of labor per day is sufficient for able-bodied persons if any intellectual improvement is expected of them. In many instances it would be more profitable to spend even less time in routine labor and give better opportunity for mental discipline and general physical culture. Mental discipline brings a reform of intelligence, of knowledge and of judgment which are supremely necessary in the care of persons criminally disposed and in the prevention of crime. In this respect a careful classification of the inmates of every prison should be had, whatever be the system adopted, and each individual should have a treatment that best suits his case. Men are not reformed in groups and companies but by special influences brought to bear upon the individual. The Elmira reformatory has been a living application of this theory. This institution has been taken as a model not only for America but for the whole world, and at present represents the most successful institution for the reform of young criminals yet established. It makes no distinction between the prisoners within and the people without any further than is necessary on account of the difference in conditions.

When prisoners enter the Elmira reformatory they are given grade *two* with the possibility of their falling to grade *three* or rising to grade *one*.

Each grade is clothed differently from the others, and in that respect a discrimination in clothing is shown between the different groups or prisoners within the prison rather than between those within and the people without. All attempts are here made possible to make men dwell upon the better things of life, to turn their whole attention to the development of what manhood is still within them, and thus transform the criminal into independent and self-asserting manhood.

But classification should not stop here. According to our principle each individual should be treated according to the character of his crime and the condition of his criminality, indeed, according to his own character. Sweeping laws which pass upon a great mass of criminals, that are made inflexible and indiscriminative, are the most valueless that can ever be instituted for the guidance of the warden of a prison. In his judgment should rest the determination of many things concerning prison discipline. A warden should be a person especially trained for his position by long practice and theoretical study. So far as possible he should be removed from political regime, and be continued in office during good behavior and competent administration. There should not be too many laws and rules instituted by boards of supervisors, which tend to hamper him. In Kansas the Board of Directors of the state prison make the rules for the government of the warden. Ordinarily this check upon administrative government may be wise, but to a well prepared and competent warden such laws are liable to prove irksome in the extreme. Even the statutes passed by the state ought to be sufficiently flexible to give large discretionary powers to the warden. Too many boards are a supreme nuisance to rational government. There is no greater mistake made than in the creation of a prison law which shall treat a thousand prisoners as one man, whether in regard to their food, or to the hours they shall work, or to the method of confinement, or the length of sentence, or to grade marks, or to the method which may be taken to reform them. Consequently the singling out of each individual as a character study with a desire to give him the full benefit of all helpful measures to reform him, and to place him in a way to make himself independent after he leaves the prison is, indeed, one of the prime factors in prison discipline. The method of classifying together individuals of the same character and degree of criminality, with a view to make them mutually helpful by conversation and association rather than to deteriorate their character has been tried in some instances but as a rule it has proved a failure. Nevertheless it does

seem that something might be done in this way. At least, possibly those who have a life sentence should be classified together in the same group. If prisoners must work together during the day time each group could be placed by itself. If in any kind of association there is contamination either by words or looks or signs, a few prisoners of the same degree of criminality could be classified together, which without doubt will make fewer chances for those who are very evil in nature to degrade others. How far this may be carried with success can only be determined by those who will make of it a practical example with an intense desire and determination to succeed. At any rate, it may be affirmed that the classification of prisoners in groups can be carried on with great skill and a great deal of benefit, if the buildings are arranged for this purpose: different dining rooms, different apartments and reading rooms, different associations in every way. The departmental system would have this advantage, that sets of rules could be made for the government of each separate department and would thus more nearly meet the conditions and needs of each separate group of prisoners. But such a classification is urged only in cases where the solitary system is practically impossible. In close connection with this classification might be considered the question of hereditary treatment. Every prisoner who enters any prison whatever should be carefully studied as to his past history and present life, in order to ascertain his own nature and the elements of manhood within him which are possible of development. A careful record of every prisoner, his past life, the crimes he has committed, his education, his conditions and associations should be carefully considered. This record will enable those who have charge of prisoners to study their character, and not only enable them to manage them better as a disciplinary means, but also furnish a means for such reform as the prisoners are capable of. It may do more even than this, in the study of the influence of heredity in crime. There are those who hold that not much can be made out of the fact that criminal fathers are more apt to have criminal children than others. But no one who has made a careful inquiry into hereditary taints can question that there is a great tendency in hereditary crime. The subject has not been studied sufficiently far to give data enough to warrant us in drawing mathematical conclusions. But cases have been cited where criminals have married and intermarried and large numbers of children have become criminals through many generations. An interesting fact is to be noted here, however, that a large number of the so-

called hereditary crimes arise out of existing conditions rather than from blood taint; thus a child whose parents are thieves, and the companions of whose parents are thieves, grows up with his early life biased in this direction; all about him are men engaged in these corrupt practices and the early life is impressed with the supposition that this is a normal state of affairs and he naturally grows up to follow the calling of his parents and neighbors, just as an individual who is brought up to know nothing but farming, and considers this the legitimate calling of his father and neighbors, would seem likely to take to it as a livelihood rather than to something else with which he is less familiar.

The investigations of such men as Charles Booth in London^[6] would seem to indicate that crime arises chiefly out of conditions, examples, and habits, rather than from the assumption that men are born to crime through any inherent psychological tendency. In this it is not intended to show that heredity does not have a large influence in the development of crime. Statistics have been prepared to thoroughly substantiate the fact that heredity plays a great part in the development of the criminal.

“Of the inmates of Elmira reformatory 499, or 13.7 per cent. have been of insane or epileptic heredity. Of 233 prisoners at Auburn, New York, 23.03 per cent. were clearly of neurotic (insane, epileptic, etc.) origin; in reality many more. Virgilio found that 195 out of 266 criminals were affected by diseases that are usually hereditary. Rossi found five insane parents to seventy-one criminals, six insane brothers and sisters and fourteen cases of insanity among more distant relatives. Kock found morbid inheritance in 46 per cent. of criminals. Marro, who has examined the matter very carefully, found the proportion 77 per cent., and by taking into consideration the large range of abnormal characters in the parents, the proportion of criminals with bad heredity rose to 90 per cent. He found that an unusually large proportion of the parents had died from cerebro-spinal diseases and from phthisis. Sichard examining nearly 4,000 criminals in the prison of which he is director, found an insane, epileptic, suicidal and alcoholic heredity in 36.8, incendiaries 32.2 per cent. thieves, 28.7 sexual offenders, 23.6 per cent. sharpers. Penta found among the parents of 184 criminals only 4 or 5 per cent. who were quite healthy.”^[7]

Such being the awful tendency of crime to breed crime, questions arising respecting the causes of crime ought to be a careful study by all

persons interested in criminology or penology.

The question has often arisen, How will you find out correctly about the past history of individuals? Some conclude that, because prisoners are dishonest, there is no method by which you can find out about their past life or early conditions. A careful study of this question by men who are expert in handling criminals, has convinced the public that this may be done. Possibly as much of the record of the prisoner as is convenient to be obtained, should be procured by the court and sent to the warden with the sentence. If it could not, the warden then could ascertain through a commission the past history of each prisoner as he comes to him and a full record of his life, condition, habits, etc. If this was not complete, it could be verified from time to time or be changed from time to time, as facts developed later on. Perhaps no one has succeeded any better in this line than has Mr. Brockway, general superintendent of the Elmira reformatory. Mr. Brockway presents the subject in the following letter:

F. W. BLACKMAR, ESQ., Lawrence, Kansas:

DEAR SIR:—Yours of the 21st. There is a mistaken impression abroad about the possibility of ascertaining from prisoners the truth on any subject. They are liars, in common with the remainder of the race not in prison. Perhaps more apparently so, but nevertheless they are not in this respect more untruthful than witnesses called to the stand in courts, witnesses who have never been and, probably, never will be in prison. My observation is, in the five investigations of my prison administration, had during long years of it, that the statements of prisoners before the several commissions were as truthful as are the statements of witnesses heard at trials outside.

The real difficulty in ascertaining the truth in the examination of prisoners is not very much more difficult than to ascertain the truth of any other common class of witnesses. It goes without saying that the examination of witnesses needs to be made by a competent, pains-taking examiner, before whom it is usually easily determined

whether the witness is lying, prevaricating or making substantially a truthful statement. Moreover, it is possible by clues ascertained in the course of the examination from statements made by the prisoner,—names, dates, etc., to verify or disprove the accuracy of the statement he makes on his examination. There are some cases, not very many, where no clue can be had or dates or names ascertained. These, however, constitute such a small percentage of the prisoners examined, that it constitutes a class scarcely worth considering in this connection.

The particular purpose of inquiring into the early and antecedent history of the prisoners committed to this Reformatory during the last fifteen years has been to ascertain the character of the defects of the man himself, with a view to map out and conduct a course of treatment calculated to cure such defects or build up counteracting impulses and habitudes, as well as to determine the cause of the defects observed. It has been abundantly demonstrated by our experience here that the record made on the date of the prisoner's admission, which is an abstract of the examination held by the General Superintendent, is substantially accurate,—accurate in all the essentials required to determine the real character of the man. I am sure, if it was deemed important to go back one or two generations for hereditary influences, we might ascertain enough from the prisoner on his examination to enable further inquiry outside which, together with the statements of the prisoner, would form very reliable data.

I am, dear sir,

Very respectfully yours,

Z. R. BROCKWAY, *Gen. Supt.*

The following table shows something of Mr. Brockway's method of classification as the result of his investigations:[\[8\]](#)

BIOGRAPHICAL STATISTICS OF INMATES.

1. Relating to their Parentage (Hereditary.)

Insanity or epilepsy in ancestry	499 or 13.7 per cent.
----------------------------------	-----------------------

DRUNKENNESS (*in Ancestry*).

Clearly traced	1,408 or 38.7 per cent.
Doubtful	403 or 11.1
Temperate	1,825 or 50.2

EDUCATION (*in Ancestry*).

Without any education	495 or 13.6 per cent.
Simply read and write	1,885 or 38.1
Ordinary common school or more	1,592 or 43.8
High School or more	164 or 4.5

PECUNIARY CIRCUMSTANCES (*in Ancestry*).

Pauperized	173 or 4.8 per cent.
No accumulation	2,801 or 77.0
Forehanded	662 or 18.2

OCCUPATION (*in Ancestry*).

Servants and clerks	376 or 10.4 per cent.
Common laborers	1,197 or 32.6
At mechanical work	1,343 or 36.9
With traffic	633 or 17.7

THE PROFESSIONS (*so-called*).

Law	16
Medicine	36
Theology	10
Teaching	<u>25</u>
	87 or 2.4 per cent.

2. Relating to Inmates Themselves (Environment).

THE HOME LIFE.

(a) Character of Home Life.

Positively bad	1,883 or 51.8 per cent.
Fair (only)	1,453 or 39.9
Good	300 or 8.3

(b) Duration of Home Life.

Left home previous to 10 years of age	187 or 5.2 per cent.
Left home between 10 and 14 years of age	226 or 6.2
Left home soon after 14 years of age	1,121 or 30.8
At home up to time of crime	2,192 or 57.8

NOTE.—As to the 1534 homeless:

Occupied furnished rooms in cities	390 or 25.4 per cent.
Lived in cheap boarding houses (itinerant)	280 or 18.2
Rovers and tramps	533 or 34.8
Lived with employer	331 or 21.6

EDUCATIONAL.

Without any education (illiterates)	710 or 19.5 per cent.
Simply read and write (with difficulty)	1,814 or 49.9
Ordinary common school	979 or 26.9
High school or more	133 or 3.7

INDUSTRIAL. [\[9\]](#)

Servants and clerks	1,041 or 28.6 per cent.
Common laborers	1,853 or 51.0
At mechanical work	649 or 17.8
Idlers	93 or 2.6

CHARACTER OF ASSOCIATIONS.

Positively bad	2,072 or 56.9 per cent.
Not good	1,439 or 39.6
Doubtful	64 or 1.8
Good	61 or 1.7

NOMINAL RELIGIOUS FAITH OR TRAINING.

Protestant	1,531 or 42.1 per cent.
Roman Catholic	1,667 or 45.8
Hebrew	207 or 5.7
None	231 or 6.4

The study of physical, mental and moral characteristics will lead us to other determinations and will show in physical health that the prisoners are as a rule not much, if any, below the average of people at large. It will also show that the majority of them not accustomed to regular work or employment are not capable of doing as much labor or enduring as much constant physical fatigue as would the same body of men who are not criminals taken from the common ranks of the people. So as to mental characteristics, we can urge that the criminal intellect has not been keen enough to take proper rank with the average mind. It is a fact, however, that many criminals are very shrewd and intellectually keen. Doubtless something could be said about the quality of such intellect and its special characteristics. It is the intellect of a coarse nature and not cultured, refined, or properly trained in the aggregate. The well developed mind, balanced in every particular, is rare among criminals. It will be seen, however, that a

defect in the moral nature is in most instances a secret cause of the crime. Moral insensibility seems to be the common characteristic of a large proportion of prisoners. It is indeed too true with many of them that their conscience consists merely in the humiliation of being caught. Dwell as they may upon past deeds, the great fault of their own, as far as they view it, is in the fact that they were caught in the act and apprehended and punished. This moral insensibility is found in all grades and degrees, from that of a complete lack of moral symptoms to those of a highly sensitive moral nature.

Of the 4,000 criminals who have been through the reformatory at Elmira, 36.2 per cent showed on admission positively no susceptibility to moral impressions; only 23.4 per cent were ordinarily susceptible.^[10]

The following tables, taken from the report of the general superintendent of the Elmira reformatory for 1889, may be found interesting. It must be observed that the majority of these prisoners are young and all of them under the age of 30.

CONDITION AS OBSERVED ON ADMISSION.

PHYSICAL.

(a) As to health:

Debilitated or diseased	200 or 5.5 per cent.
Somewhat impaired	501 or 8.3
Good health	3,135 or 86.2

(b) As to quality:

Low or coarse	916 or 25.2 per cent.
Medium	1,354 or 37.2
Good	1,366 or 37.6

MENTAL.

(a) Natural capacity:

Deficient	73 or 2.0 per cent.
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Fair (only)	789 or 21.7
Good	2,300 or 63.2
Excellent	474 or 13.1
(b) Culture:	
None	1,572 or 43.2 per cent.
Very slight	1,040 or 28.6
Ordinary	916 or 25.2
Much	108 or 3.0

MORAL.

(a) Susceptibility to moral impressions now (estimated):

Positively none	1,318 or 36.2 per cent.
Possibly some	1,310 or 36.1
Ordinarily susceptible	851 or 23.4
Specially susceptible	157 or 4.3

(b) Moral sense, even such as shown under the examination, either filial affection, sense of shame, or sense of personal loss:

Absolutely none	1,794 or 49.3 per cent.
Possibly some	1,112 or 30.6
Ordinarily sensitive	553 or 15.2
Specially sensitive	177 or 4.9

Without doubt this is a better showing by far than can be had in any ordinary prison. Auburn contains a different class of criminals than is found at Elmira. So, also, for the older prisons of Europe, there are more *recidivistes*, or habitual criminals in these prisons. In the West there appears to be fewer of the habitual class and more of the accidental class in proportion than are found in older countries of denser population. Yet much of a helpful nature could be had by a more careful study of individual characteristics of criminals than is at present carried on. This means more time, more help and more expense, but in the long run it would amply pay.

An excellent phase of the Kansas system is the shortening of terms on account of good behavior within the prison walls. It is provided by statute that three days per month for the first year shall be deducted from the term of sentence of such prisoners as have no marks against them for disobeying the rules of the prison. If the record has been good at the close of the first year, six days per month shall be deducted during the second and eight days per month during the third if good conduct continues. These privileges apply to years or parts of a year. [\[11\]](#)

Another timely measure permits prisoners to participate in their own earnings. Five per cent. of each day's labor at the rate of seventy-five cents per day, are entered to the credit of each prisoner. [\[12\]](#) If, on account of good behavior, a sentence is commuted at the end of the first year, the prisoner may have the privilege of sending these earnings to his family. There certainly is no reason why the prisoner within the walls should not support a family, if he has one, rather than allow it to be thrown upon the public. At least part of his earnings should be sent home and part saved for him to the end of his term. A certain per cent. of the earnings may be used by the prisoner in providing himself with a few comforts. (The floor in the cell shown in fig. 5 has a carpet provided in this way.) This, among other rules, suggests that the condition and conduct of the prisoner, as well as the crime, should determine the length of the sentence. If crime can be reckoned as moral insanity, as many specialists hold, then a sentence for a fixed time is similar to sending a sick man to a hospital for treatment, stating that he must remain exactly two years and three months to be cured, when in fact it may take longer or he may be cured before the end of a year. Certain it is that no criminal should be returned to the ranks of society until a reform has been thoroughly commenced. And when it can be ascertained that he will not commit crime again, it is idle to confine him longer. New York and Ohio have taken advanced steps in this direction and have instituted what is known as the indeterminate sentence for all criminals, whether in reformatories or penitentiaries. [\[13\]](#)

When the solitary cellular system is in vogue, the prisoners are limited to certain occupations within the cell, but when the associated system is practiced, all kinds of industry involving machinery may be carried on. This has given rise to what is known as the contract system, a method of employing prisoners, which should not be confounded with the unfortunate

and nearly antiquated lease system. The statutes of Kansas^[14] permit the contracting of prisoners to responsible parties, but still the state maintains its disciplinary control over the prisoners. The directors are obligated to advertise for bids in the leading papers in each congressional district. Contracts shall not exceed a term of ten years, and awards are made to the highest responsible bidder. Forty-five cents per day for able-bodied men is the minimum point below which bids are not accepted. There is a great controversy respecting the defects of the contract system, but it is not as bad as it at first appears when laborers are employed otherwise with great difficulty. Doubtless the better way is absolute management of all industries, as in case of the coal mines, by the prison superintendent.

The management of the mines is intrusted to a skillful engineer, Mr. Oscar F. Lamm. The writer has investigated the conditions under which men work, and has been to the face of the mines where they were at work, and can testify that the stories circulated about hard usage in the mines are wholly unfounded, except by persons who consider all labor, particularly mining, hard usage. The air below is pure—men are sent down every morning to test the air before prisoners are allowed to go down—and the mining is comparatively easy. There is very little difficulty in it, and the prisoners are not so bad off in these mines as are the miners in private mines elsewhere in Kansas. It may be a dreary life to lead for a person who has not been accustomed to work underneath the ground, but the average miner would pronounce the life in the mines endured by the prisoners as one of comparative ease and very few hardships. In all the experience of the mines, only one individual has been seriously hurt, and that when he disobeyed orders directly.

There have been many objections to the contract system urged by persons who are outside of the prison and its management. Whatever objections there may be to the contract system in itself, those usually observed are of no force. It is said that the goods made by prisoners come into close competition with goods made by union men outside of the prison and therefore the union men urge the repeal of the law granting the privilege of contracting prisoners for work. There can be no reason in this from the following principles: First, because every citizen of Kansas is interested in the right management of the prison as a means of protecting him and his family. In order to have this protection it is necessary that

laborers be given employment for the sake of proper management. As there are less than a thousand of these prisoners all told, many of them are employed about the buildings and grounds and many employed in furnishing coal and other goods to state institutions, the competition does not figure at all in the great labor market. Again, while the prison mines have been putting forth abundance of coal in supplying state institutions and the market elsewhere, other coal mines in and around Leavenworth have been unable to fill the orders in supplying the demand upon them. Superintendents have tried again and again during the past two years to obtain sufficient miners to take out enough coal to supply the market, but they have failed. So far as the mines are concerned, the hue and cry about competitive labor amounts to nothing. Again, the contract system is carried on in this way: The prisoners are always under the charge of the warden and prison authorities. Contracts are let to the highest bidder for a certain number of laborers. This labor must be done on the prison grounds and under the general oversight of the prison authorities. If a prisoner is not doing well at a certain occupation, he is transferred to some other occupation. He has much the same treatment everywhere. Care is taken to adapt the prisoner to the labor that best suits his condition. When these goods are finished they pass out on the market in competition with other goods of the state and neighboring states. This, as has been stated, cannot be avoided unless the solitary system is adopted and with it an exclusion of machinery. The minimum price for contract laborers is forty-five cents per day, and as a matter of business, as those contracts are let to the highest bidder and as labor is plentiful outside of the prison, there can be very little difference in the effect of this contracting for prison labor and the injury of union labor outside as respects the cheapness with which goods can be thrown upon the market. However, it seems to me that it would be better to have all prisoners and all manufacturing under the direction of the prison, and that raw material should be purchased to supply the machinery placed there for the purpose of manufacturing the goods and then the goods should be furnished to state institutions where they need them and the surplus be thrown upon the market at the usual price. This would keep all the prisoners employed and would also give them instructions by way of learning and drill in completing the finished product, which is an education in itself. Then wherein it is necessary and possible, part of the time should be employed in obtaining a fair theoretical as well as industrial education. In

this way the management of the prisoners in their graded condition would be more directly under the control of the warden and, instead of being treated as a gang at work in the shop and elsewhere, an individual consideration of every prisoner would be reached in discipline, manual labor and intelligent training.

It is not the purpose of penal institutions to humble or degrade humanity. There is no object in it and moreover it has a tendency to breed crime. Men who are sufficiently evil and reckless to commit flagrant crimes are not benefited by a punishment that degrades them or tends to rob them of the appearance of manhood. For this reason the striped suits worn by prisoners should be abandoned and suits which will classify persons within the walls, be adopted. If it be said that it is more difficult to apprehend those who escape if the traditional striped clothes are abandoned, let it be said this is of no importance; if the Bertillon or French system of registry be adopted, as represented in the following tables, there will be little chance of escape.

BERTILLON OR FRENCH SYSTEM OF PRISON MEASUREMENT AND REGISTRY.

Height,	1 m.	Remarks.	Head, length,		Remarks.	Left foot,		Remarks.			
Stoop,			Head, width,			" mid. ft.					
Outs. A.	1 m.		Right Ear.	length.		" lit. ft.					
Trunk,				width.			" fore A.				
Color of left eye. Circle. Age years.											
Periph. Z.											
Born in											
Pecul'r'ts.											
Remarks incident to } Measurements.											
SPACE FOR PHOTOGRAPH.											
DESCRIPTIVE.											
Forehead.	Incline.	Nose.	Profile.	Ridge.				Right Ear.		Beard.	Hair,
	Height.			Base.						Complexion,	
	Width.			Dimensions.					Weight,		
	Peculiarities.			Length.	Projection.	Breadth.			Build,		
									Chin,		
Measured at 189... by Remeasured When and where,											

Institution	Reg. No.
Name	
Alias	
County, Crime, Sentence	
Occupation, Descent	
Known or admitted former imprisonment	

MARKS, SCARS AND MOLES.			
Numerical Order.		Numerical Order.	

NOTE:—Please follow strictly Book of Instruction, not only as to measurements and general description, but also particularly as to Marks, Scars, etc. See pages 65 to 81. Use abbreviations as given in instructions.

One of the great difficulties in connection with prison reform is that of restoring to important places in legitimate society the ex-convicts who have been serving long terms of imprisonment. First and foremost is the consciousness of the prisoner that he has been a convict, that he has worn the striped clothes and been separated from society for a period of years on the supposition that he was not worthy to live in said society and therefore had forfeited his right to live in it. If he be strong enough to overcome the effects of such a feeling he must indeed have received a permanent reform or be strong in character. In addition to this is the fact that people know he has been a jail-bird and they will not want to employ him or trust him. This has a tendency to make him feel that he is still an outcast from society and that there are greater walls than those of the prison separating him from the trust and confidence of society. If he is employed by those who do not understand that he is from prison he carries with him continually the consciousness of deception, and this in itself has rather a bad tendency in developing a spirit which (if it does not already exist) will tend to make him

feel that he is an enemy to the society which seems against him. It will be a strong character, even though it be determined to do right at all times and even though the prison reform has been salutary, if it resists the influence of such conditions. True there are prisoners of entirely different character, who consider all attempt at reform within the prison walls as so much nonsense, or at least nothing more than opportunities for winning the favor of their superiors while under sentence, and when they pass from the prison walls they still feel, if they feel at all, that society is against them and they are against society, and they are ready at the slightest opportunity to engage in their old pursuits without even attempting to enter a legitimate calling and live respectable and honored citizens.

To relieve all this there have been attempts to form prison associations which would receive the prisoner at his discharge, place him in the hands of individuals who understand his life and character and who would sympathize with him in the attempt to continue his well begun reformation, and he, understanding them, would have confidence not only in himself but in the people around him. In this way he makes the connection which has been broken off between himself and legitimate associations, and has a possibility of outliving the past. Such an association in Kansas might accomplish a vast deal of good. It ought to be formed by philanthropists and business men who would take an especial interest in this work. Each prisoner when he has finished his sentence should be assisted quietly and earnestly in securing the proper place. It would save very many, who have left the prison with good intentions, from returning to old practices.

Perhaps the furlough system, as carried on by the Elmira reformatory, is the most unique that has ever been tried for the purpose of making the connection of the discharged prisoners with the industrial and social life without. Prisoners are discharged on furlough of three years, during which time they are placed under good influences and have all the opportunities for continuing the reform outside of the prison walls. These prisoners report monthly to the prison authorities and of their own accord. If, at the end of three years, they have made satisfactory progress and have occupied positions of trust without betraying confidence, they are given their final discharge on the supposition that they are, from that time on, able to care for themselves in a manly way. Of the discharged prisoners by the furlough system over 75 per cent. have completed their three years with credit to

themselves, which speaks well for the permanent reforming character of the Elmira system. There is need of such a school in Kansas. When the Hutchinson reformatory was projected, commissioners were sent to study the Elmira system and other systems and it was determined to carry out or follow as nearly as possible the former, believing it would be of benefit to Kansas. Certainly a reform prison is needed at present for the younger criminals, where they can be separated from the old and hardened and be placed under the best influence possible. One chief detriment to the effective working of such a reform school in the West is that it is an expensive institution, and that the people of to-day are not willing to pay sufficient taxes for the support of an institution in which so much care is given to those who have committed crimes against the state. There is a feeling here still that it is better to give support to our educational institutions and to all efforts along the line of educating that part of society which is already good and making it better, rather than spending so much money on that which is broken down. But it must be remembered, as was stated in the foregoing principles, that the care for the broken down parts of humanity is only in the interest of general humanity and should be considered upon that basis. However, I think also that a reformatory could be carried on at Hutchinson on a less expensive basis than that one at New York, and with proper management it could be made to go a long way towards supporting itself and still give proper reformatory practice for all who should come within its scope. At least the Hutchinson institution should not be abandoned under any consideration whatever. It would relieve the present overcrowded condition of our penitentiary and provide in a large measure for a class which are not sufficiently provided for.^[15]

Discharged prisoners from Lansing find but little difficulty in obtaining work in the mines if their previous training has prepared them for it. So, also, those who have trades well learned need not be out of employment and the prison authorities render assistance to prisoners in a general way in obtaining work after being discharged.

Much more might be said about criminology and penology in Kansas, of a more scientific nature than what is contained in this somewhat general discussion; it is the intention of the writer to refer again to this subject in connection with the study of sociology at the University of Kansas.

A Brief Bibliography of Municipal Government in the United States.

BY FRANK H. HODDER.

In political science, things near at hand and always with us are slighted, while remote and obscure questions are made the subject of most careful investigation. Taxation is a notable illustration of this fact. There is no act of government which so directly and intimately concerns the whole people, and yet it would be difficult to name one which has received so little careful study. In English there is not a single systematic and comprehensive work on the subject. Similarly with municipal government. With the present distribution of population this department of government controls more than one-fourth of our whole people in all their most important political relations. There is still no systematic treatise on the subject, but public interest has been aroused, and a large number of lectures, articles in periodicals and scientific journals has been printed in recent years. It is a hopeful sign that municipal government is beginning to receive careful attention in colleges. For the purpose of assisting college study of the subject, a list of such literature as could be found was printed some time ago. As it has been found useful in several institutions, it has seemed worth while to extend it and bring it down to date. The study of municipal government at home is very properly preceded by a summary of local government generally and by a glance at municipal government abroad. The order of the references is as follows:

I. Introductory.

- 1. Local Government Generally.**
- 2. European Cities.**
 - a. London.
 - b. Paris.
 - c. Berlin.
 - d. Other Foreign Cities.

II. American Cities.

- 1. Legal Status.**

2. Statistics.
3. Finance.
4. General Discussions.
5. Municipal Industries.
6. Various Topics.
7. Particular Cities.
 - a. New York.
 - b. Other American Cities.

I. INTRODUCTORY.

1. LOCAL GOVERNMENT GENERALLY.

Short accounts of the systems of local government of the principal countries of continental Europe are given in the Cobden Club Essays: Local Government and Taxation, London, 1875, edited by J. W. Probyn. See also F. Béchard's *De L'administration de la France*, 2 vols. Paris, 1851, with appendix on municipal organization in Europe.

The best short description of English local government is M. D. Chalmers's Local Government, "English Citizen" Series, London, 1883. See also Local Administration, "Imperial Parliament" Series, London, 1887, by Wm. Rathbone, Albert Pell and F. C. Montague. For still shorter account read chapter 15 of May's Constitutional History and article on "Local Government in England" by F. J. Goodnow in the Political Science Quarterly, December, 1887, vol. 2, pp. 338-65, and an article by the same writer on "The Local Government Bill" in the Political Science Quarterly, June, 1888, vol. 3, pp. 311-333. Supplement Chalmers with Cobden Club Essays: Local Government and Taxation in the United Kingdom, London, 1882, edited by J. W. Probyn. The most exhaustive work on English local offices is Rudolph Gneist's *Self-Government: Communalverfassung u. Verwaltungsgerichte in England*, untranslated, 3d ed., 1876. For full bibliography see Gomme's Literature of Local Institutions, London, 1886.

The best short outline of local government in the United States is an article by S. A. Galpin on "Minor Political Divisions of the United States," in Gen. F. A. Walker's Statistical Atlas of the United States. The papers on the local institutions of several of the States in the Johns Hopkins University Studies in Historical and Political Science are especially valuable. Chas. M. Andrews has

articles on Connecticut towns in the Johns Hopkins Studies, vol. 7, and in the Annals of the American Academy of Political Science, October, 1890, vol. 1, pp. 165-91. Especially important is Prof. Geo. E. Howard's Local Constitutional History of the United States, vol. 1.: "The Development of the Township, Hundred and Shire," printed as an extra volume in this series. John Fiske's lecture on "The Town Meeting," delivered at the Royal Institution, was printed in Harper's Magazine, vol. 70, pp. 265-272, and in his American Political Ideas, N. Y., 1885. A different view of the present importance of local institutions is taken by Prof. S. N. Patten in an article on the "Decay of State and Local Government," in the first number of the Annals of the American Academy of Political Science. For comparison of American and foreign methods, read R. P. Porter's article "Local Government: at Home and Abroad," Princeton Review, July, 1879, N. S. vol. 4, p. 172, and reprinted separately. See two articles on "Local Government in Prussia," by F. J. Goodnow in the Political Science Quarterly, December, 1889, vol. 4, pp. 648-66, and March, 1890, vol. 5, pp. 124-58. For further reference on local self-government see W. F. Foster's Monthly Reference Lists, vol. 2, pp. 23-29, and his pamphlet of References on Political and Economic Topics, p. 24.

For Canada, see J. G. Bourinot's "Local Government in Canada: an historical study," in Transactions of the Royal Society of Canada for 1886, vol. 4., sec. 2, pp. 42-70; printed separately by the publishers, and reprinted, with a letter on the municipal system of Ontario, in the 5th series of the Johns Hopkins Studies. A paper on "The Ontario Township," by J. M. McEvoy, printed in 1889, forms No. 1 of the Toronto University Studies in Political Science.

2. EUROPEAN CITIES.

For the purpose of comparison, some study should be made of municipal government abroad. Dr. Albert Shaw gives a general view of "Municipal Government in Great Britain," in Notes Supplementary to the Johns Hopkins Studies, No. 1, January, 1889, and in the Political Quarterly, June, 1886, vol. 4, pp. 197-229. Of larger works on English municipal history, mention may be made of J. R. S. Vine's "English Municipal Institutions; their Growth and Development from 1835 to 1879," London, 1879. Dr. Chas. Gross has printed a very complete "Classified List of Books relating to British Municipal History," Cambridge, 1891, as No. 43 of Bibliographical Contributions of Harvard University. Foreign experience is of very little assistance in the solution of the general problem of municipal government in the United States, but it may be useful in indicating improved methods of administration in particular

departments of a city government. Several cities that illustrate different forms of municipal government may be taken as examples.

a. London.

Specially excepted from the operation of the Municipal Corporations Act of 1835. For outline of government read Chalmers, chap. 10. For full description see J. F. B. Firth's *Municipal London*, 1876, and his *Reform of London Government and of City Guilds*, "Imperial Parliament" Series, London, 1888. For history of the corporation consult W. J. Loftie's *History of London*, 2d ed., 1884, and the same author's small work, *London*, published in 1887 in Freeman's series on "English Historic Towns." Both books are based on new material, part of it recently discovered by Bishop Stubbs. For additional references, see Gomme, pp. 122-134.

There have been a great many articles on the municipal government of London in recent periodical literature. Among them may be cited those by W. Newall, *Contemporary Review*, 1873, vol. 12, p. 73, and 1875, vol. 25, p. 437; W. M. Torrens, *Nineteenth Century*, 1880, vol. 8., p. 766; Alderman Cotton, Benj. Scott, City Chamberlain, and Sir Arthur Hobhouse in *Contemporary Review*, 1882, vol. 41, pp. 72, 308, and 404 respectively; the *Westminster Review*, for January, 1887; Dr. Albert Shaw on "How London is Governed," in the *Century*, November, 1890, vol. 41, pp. 132-147, and on "Municipal Problems of New York and London," in the *Review of Reviews*, April, 1892, vol. 5, p. 282; James Monroe on "The London Police," in the *North American Review*, November, 1890, vol. 151, pp. 615-629; Sir John Lubbock on "The Government of London," in the *Fortnightly Review*, February, 1892, vol. 51, p. 159; and an article on the "Municipal Administration of London," in the *Edinburgh Review* for April, 1892. For a good review of attempts since 1860 to regulate the London gas supply, see an article in the *British Quarterly* for January, 1879.

A Royal Commission on the City Livery Companies reported May 28, 1884. See the discussion by Sir R. A. Cross, one of the dissenting members of the Commission, in the *Nineteenth Century* for 1884, vol. 16, p. 47, and by Sir Arthur Hobhouse in *Contemporary Review* for 1885, vol. 47, p. 1. The most important work on the London guilds is William Herbert's "History of the Twelve Great Companies of London," London, 1837. The latest contribution to the subject is Price's "Description of the Guildhall," London, 1887.

b. Paris.

A sketch of its government by Yves Guyot, a member of the municipal council, may be found in the *Contemporary Review*, March, 1883, vol. 43, p. 439. Dr. Shaw gives an excellent short account in an article entitled "The Typical Modern City" in the *Century*, July, 1891, vol. 42, pp. 449-66. He cites as the principal authority on the subject Maxime Du Camp's *Paris, ses organes, ses fonctions, et sa vie dans la seconde moitié du dix-neuvième siècle*. An extended description is also given in a work entitled *Administration de la Ville de Paris*, written by Henri De Pontich under the direction of Maurice Block, Paris, Guillaumin, 1884. The *Rapports et Documents and Process-Verbaux* of the municipal council are printed yearly in three large quarto volumes, and the municipal bureau of statistics issues an annual report.

c. Berlin.

An excellent short account of the government of Berlin is given by Dr. Rudolph Gneist, a member of the municipal council since 1848, in the *Contemporary Review*, December, 1884, vol. 46, p. 769. See also the report on the "Administration of the City of Berlin" in Foreign Relations for 1881, p. 487, made by Assistant-Secretary of Legation Coleman at the request of Hon. Andrew D. White, then Minister to Germany. Also the articles by Prof. R. T. Ely in the *Nation* for March 23 and 30, 1882, vol. 34, pp. 145 and 267. In the *Nation* for September 25, 1892, vol. 55, p. 221, Mr. Leo S. Rowe combats some of Dr. Shaw's generalizations respecting municipal government in Europe, taking Berlin as his text. The Magistracy of Berlin publish reports at irregular intervals. The first, *Bericht ueber die Verwaltung der Stadt Berlin, in den Jahren 1829 bis inclu. 1840*, Berlin, 1842, and the second, *in den Jahren 1841 bis incl. 1850*, Berlin, 1853, are of considerable importance. A third, published in 1863, covers the period from 1851 to 1860, and a fourth, printed in 1882, covers the period from 1861 to 1876. The Director of the Statistical Bureau of the city publishes annually *Das Statistische Jahrbuch der Stadt Berlin*.

The present municipal system of Prussia dates from the reorganization of the municipalities by Stein and Hardenburg, November 19, 1808. See Seeley's *Life of Stein*, part 5, chap. 3, and Meier's *Reform der Verwaltung-Organization unter Stein und Hardenberg*, Leipsig, 1881. The present "Municipal Corporation Act," *Stædte-ordnung*, was passed May 30, 1853. See Kotze, *Die Preussischen Stædte Verfassungen*, Berlin, 1879, and Backoffner, *Die Stædteordnungen der Preussischen Monarchie*, Berlin, 1880, and especially Eugen Leidig's *Preussisches Stadtrecht*, Berlin, 1891. See also the articles on local government in Prussia cited above.

d. Other Foreign Cities.

Statistics of all important German cities are given in Dr. M. Neefe's *Statistisches Jahrbuch Deutscher Stædte*, Erster Jahrgang, Breslau, 1890. Financial statistics of the great European cities are given in Joseph Körösi's *Bulletin Annual de Finance des Grandes Villes*, Dixième Année, Budapest, 1890.

A short account of the municipal government of Vienna is given in a report by Mr. Kasson in *Foreign Relations* for 1879, p. 64 and an extended account in Dr. Felder's *Die Gemeinde-Verwaltung der Reichs-haupt und Residenzstadt Wien*, Vienna, 1872. For the government of Budapest see Dr. Shaw's article in the *Century*, June, 1892, vol. 44, pp. 163-179. Prof. F. G. Peabody gives a sketch of Dresden in an article entitled "A Case of Good City Government," in the *Forum*, April, 1892, vol. 13, p. 53.

The following relate to various British Cities: Dr. Shaw's "Glasgow, a Municipal Study," in the *Century*, March, 1890, vol. 39, pp. 721-736; the same writer's "Municipal Lodging Houses," in No. 1 of the *Charities Review*, November, 1891; Julian Ralph's "The Best Governed City in the World" (Birmingham) in *Harper's Magazine*, 1890, vol. 81, pp. 99-111; Thos. H. Sherman's report on "Liverpool, its Pavements, Tramways, Sewers and Artisans' Dwellings," in *Consular Reports*, June, 1890, vol. 33, pp. 284-303; and Consul Smyth's report on "Tramways and Water Works in England," in the *Consular Report* for December, 1891.

II. AMERICAN CITIES.

1. LEGAL STATUS.

For comparison of the provisions of the state constitutions relating to municipal corporations, see F. J. Stimson's *American Statute Law*, Boston, 1886, vol. 1, articles 34, 37 and 50. Note the classification of municipalities in Ohio. On the relation of municipalities to the states, consult the chapter on "The Grades of Municipal Government" in Judge T. M. Cooley's *Constitutional Limitations*, 6th ed., Boston, 1890, and a short chapter at the close of the same author's *Principles of Constitutional Law*. Judge J. F. Dillon's *Treatise on the Law of Municipal Corporations*, 4th ed., 2 vols., Boston, 1890, is the standard authority on the subject. Note the introductory historical sketch. A new text-book on the Law of Municipal Corporations, by Chas. F. Beach, Jr., has been recently issued by Houghton, Mifflin & Co. Reference may also be made to Judge

Dillon's Law of Municipal Bonds, Chicago, 1877, and to A Treatise on Municipal Police Ordinances, Chicago, 1887, by N. T. Horr and A. A. Bemis, of the Cleveland bar. The authors of the last work say in their preface that "The necessity for it arises from the fact that, except in those cities and towns where the municipal council has the assistance of regularly employed legal advisers, the limits of lawful legislation are apt to be exceeded."

Numerous references to articles in law journals are given on pp. 386-388 of Jones's Index to Legal Periodical Literature, Boston, 1888. An article by J. R. Berryman on "Constitutional Restrictions upon Legislation about Municipal Corporations," in the American Law Review, May-June, 1888, vol. 22, p. 403, may be cited.

2. STATISTICS.

The Eleventh Census will give very full statistics of cities, but though some of the results have been announced in bulletins, none of the final reports have yet been issued. These results have been summarized by Hon. Carroll D. Wright in the Popular Science Monthly for 1892, vol. 40. On "Urban Population" see p. 459; on "Social Statistics of Cities" p. 607, and on "Rapid Transit," p. 785.

The following Reports of the Tenth Census treat of this subject: vol. 1, Population; vol. 7, Valuation, Taxation and Indebtedness; vol. 18, Social Statistics of Cities: New England and Middle States (reviewed in the Nation, vol. 44, p. 256); and vol. 19, Social Statistics of Cities: Southern and Western States.

Scribner's Statistical Atlas of the United States, N. Y., 1883, exhibits the figures of the census graphically (p. xlv, statistics of population). Plate 21 illustrates the growth of American cities since 1790. There were then only eight cities of eight thousand inhabitants, and the population of New York was 33,131. Plate 30 gives ratios of different nationalities to total population in the largest fifty cities. Plate 76 gives net per capita debt in the largest one hundred cities.

On movement of population see an article by B. G. Magie, Jr., in Scribner's Monthly, January, 1878, vol. 15, p. 418; Prof. Richmond Smith's "Statistics and Economics," p. 264 in vol. 3 of the Publications of the American Economic Association; a study on the "Rise of American Cities" by Dr. A. B. Hart in the Quarterly Journal of Economics, January, 1890, vol. 4, pp. 129-157; an article by Lewis H. Haupt on "The Growth of Great Cities" in the Cosmopolitan for November, 1892, and another by John C. Rose, on "The Decrease of Rural Population" in the Popular Science Monthly for March, 1893, vol. 42, pp. 621-

38. Cf. work by E. Levasseur, entitled *Les Populations Urbaines en France, comparees a celles de l'Etranger*, Paris, 1887.

The Annual Statistician, published by L. P. McCarty, San Francisco, gives the following statistics for leading cities: Number of votes registered and polled; number of voting precincts; strength of police; losses by fire and number of fire-engines and firemen; value and capacity of gas and water works; number and character of street lights; vital statistics; number of murders, suicides, and executions; length of street railroads and cost of motive power; telegraph and telephone mileage; number of saloons and cost of licenses; attendance and cost of schools, annual tax-rate, expenditure and the public debt.

3. FINANCE.

Volume 7 of the Reports of the Tenth Census, compiled by Robert P. Porter, gives statistics of local taxation and indebtedness, and a summary of the provisions of the several state constitutions limiting the rate of taxation, the amount of municipal debts, and the purposes for which they may be contracted. See p. 674 for an analysis of the purposes for which the debt outstanding in 1880 was contracted. The Eleventh Census will give similar data. Mr. Porter published an article on municipal debts in the N. Y. Banker's Magazine for September, 1876, and another in Lalor's Cyclopædia of Political Science, vol. 1, p. 730. Cf. also his article in the Princeton Review, n. s., vol. 4, p. 172. For a further study of this subject, read Prof. H. C. Adams's Public Debts, N. Y., 1887, Part 3, chap. 3. See also G. W. Green's article on "Municipal Bonds," Lalor's Cyclopædia, vol. 2, p. 920; Prof. S. N. Patten's "*Finanzwesen der Staaten und Stædte der Nordamerikanischen Union*," Jena., 1878; C. Hale's "Debts of Cities," Atlantic, vol. 38, p. 661, for the law of Massachusetts; D. L. Harris's "Municipal Economy," Journal of Social Science, vol. 9, p. 149, for the experience of Springfield, Mass., the articles in Bradstreet's for February 10 and March 3, 1883, for a comparison with local debts in England, and H. B. Gardner's "Statistics of Municipal Finance" in the Publications of the American Statistical Association, June, 1889, vol. 1, pp. 254-67. On the debt of New York City see the paper by Wm. M. Ivins cited below. A Statement of Facts Concerning the Financial Affairs of the City of Elizabeth, N. J., which has the largest per capita debt in the United States, was published by some of the citizens of that place in January, 1886.

Municipal taxation is treated at length in Prof. R. T. Ely's Taxation in American States and Cities, New York, 1888. The Reports of the Commissioners

Appointed to Revise the Laws for the Assessment and Collection of Taxes in New York, 1871 and 1872, contain much valuable material. The members of the Commission were David A. Wells, Edwin Dodge, and George W. Cuyler. The first report was reprinted in New York by Harpers, and both were reprinted in England by the Cobden Club. Cf. also Wells's "Theory and Practice of Local Taxation in America," in the Atlantic Monthly for January, 1874; "Rational Principles of Taxation," a paper read in New York, May 20, 1874, Journal of Social Science, vol. 6, p. 120; and his "Reform of Local Taxation" in the North American Review for April, 1876. On the evils of double taxation see a paper on "Local Taxation" by William Minot, Jr., read in Saratoga, September 5, 1877, and printed in the Journal of Social Science, vol. 9, p. 67. See Report in 1876 of New Hampshire Tax Commission, composed of Geo. Y. Sawyer, H. R. Roberts, and Jonas Livingstone; and Report of the Michigan Commission, House Journal, February 23, 1882. A similar Commission, appointed by the City of Baltimore, reported in January, 1886. The Report contains, in addition to the recommendations of the Commission, a paper by Prof. R. T. Ely, entitled "Suggestions for an Improved System of Taxation in Baltimore." A further article on "Municipal Finance" may be found in Scribner's Magazine, January, 1888, vol. 3, pp. 33-40, and a thesis entitled "Special Assessments: A Study in Municipal Finance," by Victor Rosewater, is announced for vol. 2 of the "Studies in History, Economic and Public Law," issued by Columbia College.

4. GENERAL DISCUSSIONS.

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Berryman, J. R. "Constitutional Restrictions upon Legislation about Municipal Corporations." American Law Review, May-June, 1888, vol. 22, p. 403.

Bowles, Samuel. "Relation of State to Municipal Governments, and the Reform of the Latter." Journal of Social Science, vol. 9, p. 140.

A paper read in Saratoga, September 7, 1877.

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Browne, G. M. "Municipal Reform." *New Englander*, February, 1886, vol. 45, p. 132.

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This well known work contains the following chapters on municipal government: chapters 50 and 51, "The Government of Cities;" chap. 52, "An American View of Municipal Government in the United States," by Pres. Seth Low; chapters 59-64 explain the working of party machinery; chap. 88, "The Tweed Ring in New York City," by F. J. Goodnow, and chap. 89, "The Philadelphia Gas Ring."

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Contents:—"The Selection of Municipal Officers: their Terms and Tenures," by T. H. Pease, of Chicago, Ill.; "The Appointment of Municipal Officers," by John Prentiss, of Keene, N. H.; and "The Selection and Tenure of Office of Municipal Officers," by Prof. H. T. Terry, of the University of Tokio, Japan.

Chamberlain, Joseph. "Municipal Institutions in America and England." *Forum*, November, 1892, vol. 14, pp. 267-81.

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Fassett, J. S. "Why Cities are Badly Governed." *North American Review*, May, 1890, vol. 150, pp. 631-7.

Senator Fassett summarizes the results of the investigation in 1890 of a committee of the New York Senate on cities.

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This Association has united with the American Academy of Political and Social Science and its publications are now furnished by the Academy.

Fiske, Amos K. "Remedies for Municipal Misgovernment." *Forum*, April, 1887, vol. 3, pp. 170-77.

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The author claims that changes in municipal organization have been incident to the extension of the

general functions of government, and gives an analysis of the system of government in New York City.

Ivins, William M. "Machine Politics and Money in Elections." Harper's "Handy Series," N. Y., 1887.

This little book describes the working of election laws in New York, gives the amount of assessments paid by candidates for office, and advocates the adoption of the essential features of the English system.

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Vol. 3. "The City of Washington," by J. A. Porter.

Vol. 4. "The Town and City Government of New Haven,"
by Chas. H. Levermore.

Vol. 5. "The City Government of Philadelphia,"
by E. P. Allinson and Boies Penrose.

"City Government of Boston," by James M. Bugbee.

"City Government of St. Louis," by Marshall S. Snow.

Vol. 7. "The Municipal Government of San Francisco,"
by Bernard Moses.

"Municipal History of New Orleans," by W. H. Howe.

Extra vol. 1. "The Republic of New Haven: a History of Municipal Evolution,"
by Chas. H. Levermore.

Extra vol. 2. "Philadelphia, 1681-1887. A Study of Municipal Development,"
by E. P. Allinson and Boies Penrose.

Extra vol. 4. "Local Constitutional History of the United States."

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Low, Seth. "Municipal Home Rule."

A speech delivered in Brooklyn, October 6, 1882.

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New York. "Report of the Commission to devise a Plan for the Government of Cities in the State of New York." Assembly Doc., No. 68, vol. 6, 1877.

This is a very able report. The commission was appointed by Governor Tilden, with Wm. M. Evarts as chairman. The amendment to the constitution proposed by the commission was discussed by E. L. Godkin in the "Nation," vol. 26, p. 108.

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Vol. 5 contains much information respecting cities in New York and the general laws for the incorporation of cities in other states.

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This pamphlet resulted from two reports of a commission appointed in 1881 to revise the city charter of Newton, Mass. The discussion was continued by Mr. Parker and Professor W. F. Allen in the "Nation," September, 1881, vol. 33, pp. 169 and 196.

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This admirable satire was called out by the rule of the gas ring in Philadelphia. It was printed anonymously in 1881 and reprinted in vol. 1 of Spofford & Shapley's "Library of Wit and Humor," Phila., 1884. It gives an excellent picture of machine methods in large cities.

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Sterne, Simon. "The Administration of American Cities." International Review, vol. 4, p. 361.

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Pages 257 and 274 give a brief criticism of municipal government. Mr. Sterne was a member of the New York commission.

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Teall, O. S. "Municipal Reform." Cosmopolitan, March, 1891.

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5. MUNICIPAL INDUSTRIES.

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This trade annual gives for each city date when water works were built; the source and mode of supply; cost, debt, and rate of interest; annual expense and revenue from consumers and the public; the number of miles of pipe and kind of pipe for mains and services; the number of taps, meters, and hydrants; the ordinary and fire pressure and daily consumption. The first works in the United States for public supply were built at Bethlehem, Pa., in 1754. New York was first supplied in 1799, and Philadelphia in 1801. Water in both cities was pumped by steam engines and distributed through bored wooden logs.

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Chapter 10 gives a brief discussion of the action of the state in the matter of certain undertakings which are total or partial monopolies.

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Review of Reviews, February, 1893, vol. 7, p. 68.

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1890.

Arguments against public ownership.

Goodwin, W. W. "Directory of the Gas Light Companies."
N. Y., A. M. Callendar & Co.

This trade annual gives the number of gas companies,
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Keeler, Bronson C. "Municipal Control of Gas Works."
Forum, November, 1889.

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105.

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This is a debate by students of the University of Wisconsin, printed in the college paper, "The Ægis," for March 3, 1893. Arguments for and against public ownership are well stated.

6. VARIOUS TOPICS.

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Billings, John S. "Public Health and Municipal Government." Supplement to the Annals of the American Academy of Political and Social Science, February, 1891.

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Sterne, Simon. "The Greathead Underground Electric Railway." *Forum*, August, 1891, vol. 11, p. 683.

Thompson, Clifford. "Waste by Fire." *Forum*, September, 1886, vol. 2, pp. 27-39.

Warner, Amos G. "The New Municipal Lodging-House in Washington." *Charities Review*, March, 1893.

7. PARTICULAR CITIES.

The municipal reports of American cities form the original material for a study of their government. Many of the papers already cited, especially the Johns Hopkins Studies, relate to particular cities, but have been given above because of their more or less general application. New York is taken as a type of our large cities and a few notes are added upon other cities.

a. New York.

For a brief account of the system of Government, see the article on "New York," by E. L. Godkin in the *Encyclopædia Britannica*, 9th ed., vol. 17. Dr. J. F. Jameson's "Origin and Development of the Municipal Government of New York City," *Magazine of American History*, May and September, 1882, gives a sketch of municipal government down to 1821. A portion of each volume of the *Manual of the Corporation* (28 v., 1841-71), after that for 1846, is devoted to a history of the city. The volume for 1868 contains a reprint of old charters. The fact that James Parton in October, 1869, *North American Review*, vol. 103, p. 413, attributed the growing evils in the government of the city to the abolition of household suffrage, is interesting in connection with the recommendation of the Commission of 1877. See also in the *North American Review*, "The Judiciary of New York," July, 1867, vol. 105, p. 148, and Charles Nordhoff's "Misgovernment of New York," October, 1871, vol. 113, p. 321. An account of the Tweed ring may also be found in the *North American Review*, in a series of articles by C. F. Wingate, entitled "An Episode in Municipal Government,"

beginning in the number for October, 1874, and ending in the number for October, 1876. On the same subject cf. A. H. Green's "Three Years' Struggle with Municipal Misrule in New York City, a Report made by the Comptroller to the Board of Aldermen," February 18, 1875, and S. J. Tilden's "Municipal Corruption," *Law Magazine and Review*, n. s. vol. 2, p. 525, London, 1873. See also Geo. H. Andrews's *Twelve Letters on the Future of New York*, N. Y., 1877. The entire second volume of the *Statutes of New York* for 1882 is devoted to the present charter of the City of New York, or the "Consolidated Act," as it is called. The *Investigation of the Department of Public Works* in 1884 was printed in Senate Doc. No. 57, 1884; and the investigation by the committee, of which Theodore Roosevelt was chairman, was reported in Assembly Docs. Nos. 125, 153, and 172, 1884. The *Report of the Investigation of the New York Consolidated Gas Company* forms Senate Doc. No. 47, 1886. The committee found that in 1883 the gas trust declared dividends of from 23 to 33 per cent. A pamphlet by Wm. M. Ivins on "The Municipal Debt and Sinking Fund of the City of New York" contained an argument on hearing before the Governor, June 2, 1885, and an historical review of the funded debt and of the operation of the sinking-fund since its foundation. Of recent articles on cost and methods of elections cf. W. M. Ivins's articles cited above; Theodore Roosevelt's "Machine Politics in New York City" in the *Century*, November, 1886, vol. 33, p. 74; E. S. Nadal's "The New York Aldermen" in the *Forum*, September, 1886, vol. 2, pp. 49-59; Howard Crosby's "Letter to the People of New York" in the *Forum*, December, 1886, vol. 2, pp. 420-28; J. B. Bishop's "Money in City Elections," an address read before the Commonwealth Club in New York, March 21, 1887, reported in the *Evening Post* and printed separately; the same writer's "The Law and the Ballot," *Scribner's Magazine*, February, 1888, vol. 3, p. 194; and the *Nation*, vol. 44, pp. 180 and 204; A. C. Bernheim's "Party Organizations and their Nomination to Public Office in New York City" in the *Political Science Quarterly*, March, 1888, vol. 3, pp. 97-122, and the same writer on "The Ballot in New York" in the *Political Science Quarterly*, March, 1889, vol. 4, pp. 130-52; and Dr. Shaw's "Municipal Problems of New York and London" in the *Review of Reviews*, April, 1892, vol. 5, p. 282.

b. Other American Cities.

Boston.—Report of the Commission on the City Charter and Two Minority Reports (Docs. 120, 146, and 147, 1884). The first Report contains an outline of the municipal governments of New York, Brooklyn, Philadelphia, Baltimore, St. Louis, and Chicago.

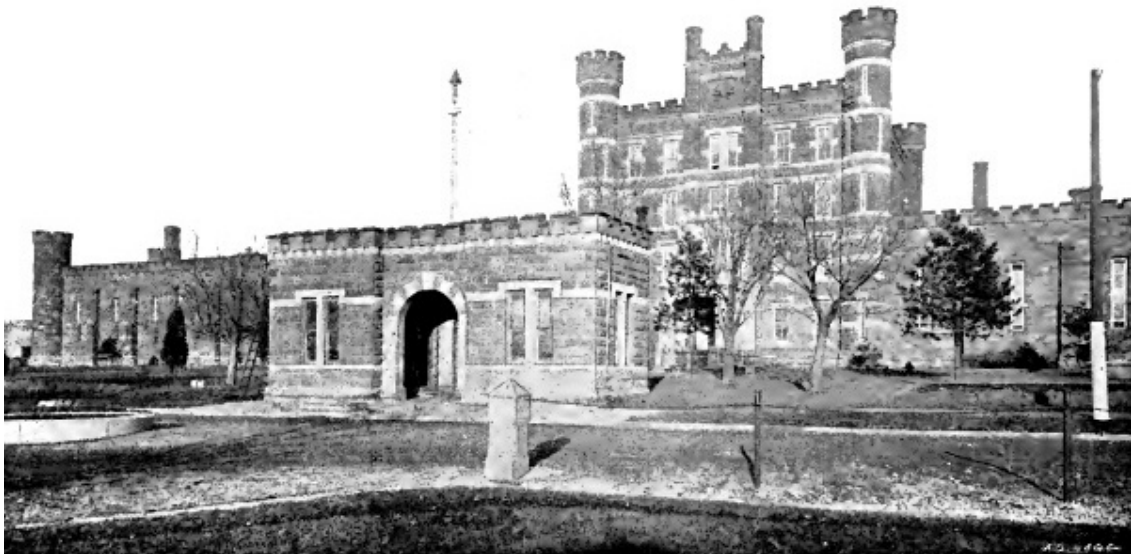
Philadelphia.—Johns Hopkins Studies cited above; E. V. Smalley's article on the "Committee of 100" in the *Century*, July, 1883, vol. 4, p. 395; Publications of the Philadelphia Social Science Association for 1876 and 1877, on the subject of building associations; Henry C. Lea had a "Letter to the People of Philadelphia" in the *Forum*, January, 1887, vol. 2, pp. 532-8. The reform charter or the "Bullitt Bill," which went into effect April, 1887, is said to be a model municipal constitution.

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Providence.—Town and City Government in Providence, a Study in Municipal History, by Geo. C. Wilson, Providence, Tibbitts & Preston, 1889.

PLATE I.



KANSAS STATE PENITENTIARY—MAIN ENTRANCE.
E. S. Tucker, Phot.

PLATE II.



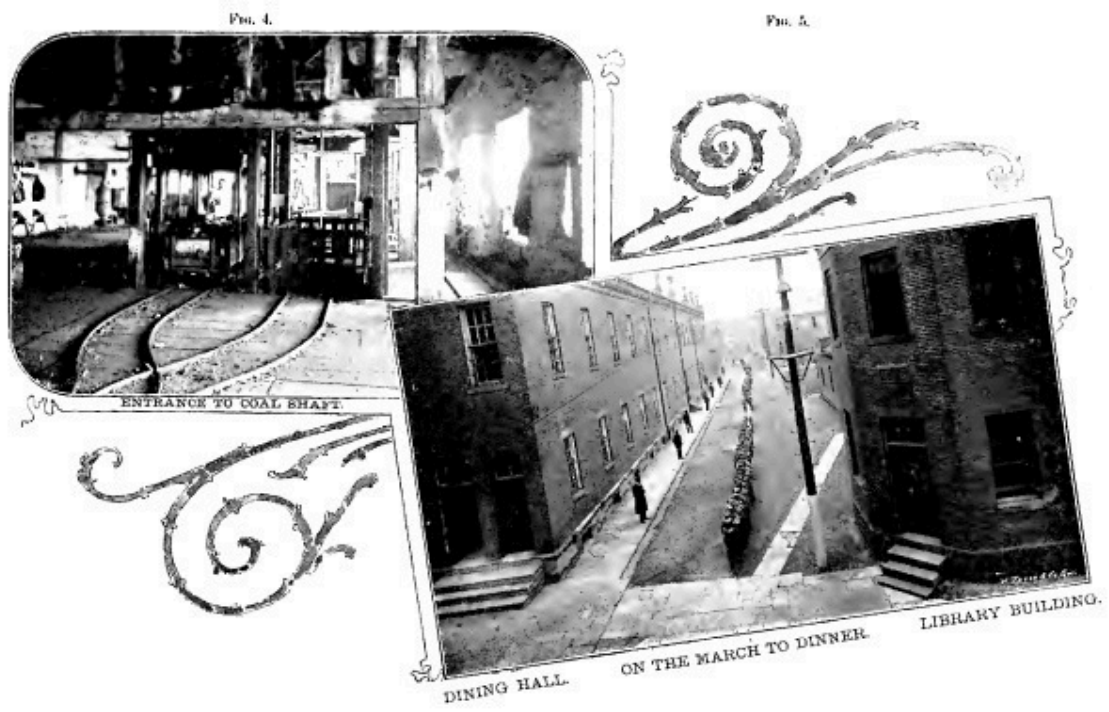
HORSE COLLAR FACTORY.
E. S. Tucker, Phot.

PLATE III.



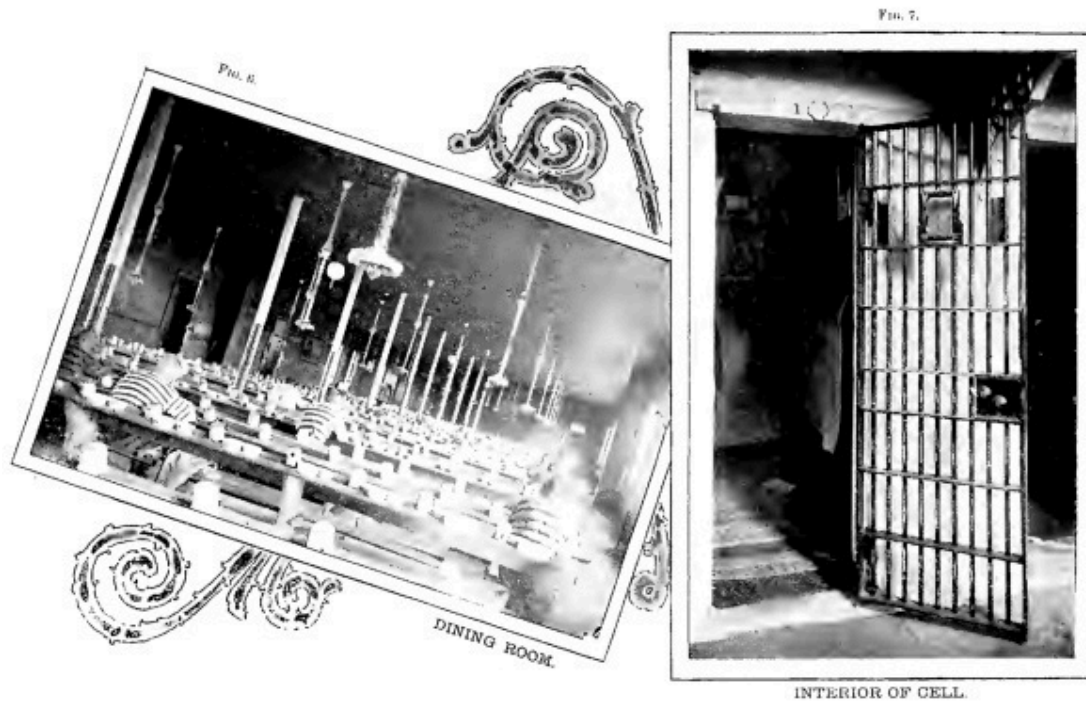
INTERIOR OF CELL HOUSE.
E. S. Tucker, Phot.

PLATES IV AND V.



E. S. Tucker, Phot.

PLATES VI AND VII.



E. S. Tucker, Phot.

PROSPECTUS.

The KANSAS UNIVERSITY QUARTERLY is established by the University of Kansas, and will be maintained by it as a medium for the publication of the results of original research by members of the University. Papers will be published only upon recommendation by the Committee of Publication. Contributed articles should be in the hands of the Committee at least one month prior to the date of publication. A limited number of author's *separata* will be furnished free to contributors.

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Lawrence.

Footnotes:

- [1] Eighth Biennial Report of Kansas State Penitentiary, p. 7.
- [2] The writer is much indebted to the present Warden, Hon. Geo. H. Case, and to his able assistants for their courtesy in showing him the working details of the prison.
- [3] Quoted from Prison Science, by Eugene Smith, p. 7.
- [4] Tallack, Penological and Preventive Principles, p. 118.
- [5] Criminology, McDonald, pp. 36-96.
- [6] Life and Labor of the People of London, by Charles Booth, 3 vols.
- [7] Havelock Ellis, The Criminal, page 93.
- [8] See Annual Report of the Board of Managers of the Elmira Reformatory, 1889.
- [9] It should be stated that the above who claimed some occupation are, as a rule, not regularly employed, nor steady reliable workmen.
- [10] The Criminal, p. 139.
- [11] Kansas Statutes, 6421, 1889.

[\[12\]](#) Ibid., 6439.

[\[13\]](#) See Proceedings of the National Conference of Charities, 1891, p. 290.

[\[14\]](#) Revised Statutes, 6442, 1889.

[\[15\]](#) The Kansas Legislature at its recent session made an appropriation to complete the Hutchinson Reformatory.

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